

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 23, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: COUNCIL PRESIDENT – Dr. Mark Rinne; COUNCIL MEMBERS – Rocky Case, Bryan Cook (arriving at 6:03), Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mayor Marian J. Orr. In the absence of Mayor Orr, Council President Rinne chaired the meeting. [City Clerk's note: As chair and with the exception of the vote taken on the main motion for Agenda Items #8 and 9, ordinances on third and final reading, President Rinne exercised his option, as entitled by state statute, to not cast a vote on agenda items]. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve Consent Agenda items, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 9, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

President Rinne opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's office for Central Cafe, LLC d/b/a Central Cafe, 3920 Central Avenue, Cheyenne, WY. Mike Kubasti and Bob Jensen spoke in favor of the application and commented on how the business is a great addition to the neighborhood. [Mr. Cook joined the meeting in progress] Katy Rinne, Central Cafe, explained the business would like to offer a small selection of beer and wine only to their customers. Upon inquiry, Ms. Rinne stated they intend to remain a family friendly environment and will follow city and state liquor license dispensing and employee TIPS training requirements. There being no further comments or input and purpose of the hearing having been met, President Rinne closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Section 8.40.010, Purpose – Authority – General Provisions, of Chapter 8.40, Food and Food Service Establishments, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming, by creating a new Subsection 8.40.010(d) exempting beverage stands selling lemonade, iced tea or similar beverages, operated by minors under the age of eighteen (18) years, from the provisions of this chapter. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Main carried. Voting “yes” – all members of the governing body present. (#4240)

ORDINANCE – 3rd READING – Creating Section 15.08.031, Building Permit Fees – Exceptions, of Chapter 5.08, International Building Code, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming. Vicki Dugger, Downtown Development Authority, spoke in favor of the ordinance for redevelopment purposes, noting it should result in increased property valuations and property tax revenue. Dick Mason inquired whether the ordinance would implement a fee waiver and if there was a conflict with City Code Section 2.36.010 (B) that indicates Building Safety Department staff must ensure the collection of plan review, building permit, inspection and related fees. It was clarified the ordinance would provide a waiver of building permit fees pursuant to provisions of the ordinance. Upon inquiry, Sylvia Hackl, City Attorney, stated as a general rule in the interpretation of ordinances, the more specific ordinance will govern. It was advised the ordinance contains a “sunset” clause of June 30, 2019 and the fee waiver pertains only to building permit fees, not plan review and other fees. Chuck West spoke in favor of the ordinance and stated this is a pilot program with a monetary limit and it will help assist tenants who are responsible for improvements. Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Discussion included support for infill redevelopments; reviewing regulatory hurdles that may also assist development; fees based on valuation of projects, and City staff responsible for making final decisions regarding approval of a fee waiver. During discussion and upon inquiry, Alessandra McCoy Fakelman, Assistant City Attorney, provided information on how building permit fees are assessed and the “cap” on the amount of fee waiver per project as outlined in the ordinance. She noted the City’s current Chief Building Official had approved the ordinance, and that an application process would be utilized with applications approved by the Interim Planning and Development Director. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook voting “no”. (#4241)

ORDINANCE – 1st READING – Repealing Section 9.12.080, Electric Fences Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Johnson)

RESOLUTION – Adopting “The Development Plan for the Hynds/Hole (H2) Project” presented by the Downtown Development Authority of the City of Cheyenne. Vicki Dugger, Downtown Development Authority, explained the resolution is a partner to a previous resolution (Resolution #5942) recently passed by the governing body and commented in support of the resolution. Reporting for Public Services Committee, Mr. Roybal moved to adopt, seconded by Mr. Case. Mr. Roybal moved to amend by adding the following language at the end of the “Be It Further Resolved” clause: This Resolution does not trigger Section 2 of the “Now Be It Resolved” clause contained in Resolution No. 5942; that the up to \$750,000.00 commitment of City funds

indicated in Resolution No. 5942 is not triggered until a developer is selected, a completion bond is obtained, a development agreement is approved by the DDA and the governing body, and that paragraph #3, Project Framework, Timing and Flow, of the DDA Development Plan, attached as Exhibit A, is amended by adding Councilman Pete Laybourn as a member of the Technical Review Committee, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5943)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Granite Springs Subdivision, a replat of a portion of Tract 3, Prosser Tracts, Laramie County, Wyoming (located northeast of and adjacent to the intersection of Avenue C and Jefferson Road). Bill Fehringer, CEPI, agent for the applicant, explained the action is to clean up property line issues involving encroachment. Mr. Roybal moved to adopt with staff condition #1, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present. (#5944)

[CA] RESOLUTION – Acknowledging the receipt of the feasibility study for the Cheyenne Municipal Courts, and authorizing the City Attorney to expediently pursue all actions required to complete the purchase of the real property located at 308 West 17th Street, in the City of Cheyenne, Laramie County, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

Preliminary Plat for Willow Heights, a replat of Lot 14, Block 5 and a portion of adjacent rights-of-way, Homestead Addition, First Filing Replat, and a plat of a portion of NE½, NE¼, Section 4, T13N, R66W, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located between Homestead Avenue and the Greenway, west of North College Drive). Mr. Roybal moved to adopt with staff conditions #1 through 8, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”.

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Juvenile Services Joint Powers Board for crisis center services at the Juvenile Service Center (revenue to City). Motion (per Consent Agenda) carried. (#6878)

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for the Weekender Community Service program (revenue to City). Motion (per Consent Agenda) carried. (#6879)

[CA] Professional Services Agreement between the City of Cheyenne, Sanitation Division, and Veolia Inc., Henderson, Colorado, for hazardous waste disposal services at the Cheyenne Household Hazardous Waste Facility (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$200,000.00). (#6880)

[CA] Professional Services Agreement between the City of Cheyenne, Sanitation Division, and Onsite Electronics Recycling, LLC, Fort Collins, Colorado, for electronic recycling services at the Felix Pino Transfer Station Waste Facility (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$160,000.00). (#6881)

[CA] Land Exchange Agreement for the proposed trade of a portion of real property owned by the City of Cheyenne at 2303 Westland Road (estimated appraised value of \$15,228.75), for a portion of real property owned by Roger E. Gill and Alec Yurgilevich at 2305 Westland Road (estimated appraised value of \$16,563.94), Cheyenne, Wyoming (Community Development Block Grant fund – Cheyenne Capitol Basin Flood Control Project). Motion (per Consent Agenda) carried. (#6882)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the University of Wyoming Police Department for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#6883)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for Juvenile Probation Services. (revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and Noel Griffith Jr. & Associates Architects, Cheyenne, for analytical and design engineering for the construction of a new Municipal Court. (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-12-18 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, for the 2018 City Chip Seal #2 Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,115,396.00). (#6884)

[CA] Consideration of Bid #S-13-18 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, for the 2018 Pavement Rehabilitation; 20th Street and Mountain Road Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,891,928.74). (#6885)

[CA] Consideration of Bid #S-1-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and Simon Contractors, Cheyenne, for the Mylar Park Restroom Prep Work Project (Community Development Block Grant). Motion (per Consent Agenda) carried (amount not to exceed \$45,363.23). (#6886)

[CA] Consideration of Bid #E-2-19 for furnishing two new 2019 transfer trailers for the City of Cheyenne Sanitation Division. (Solid Waste Management fund) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's office for The Ridge Restaurant LLC d/b/a The Ridge Restaurant, 1820 Ridge Road, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Under other business, Mr. Johnson and Mr. Case complimented an off-duty City employee who assisted with an issue at Sun Valley Park during the recent Neighborhood Night Out event.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:32 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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